

PRIVACY POLICY

Marketing4Effect (M4E) — Customer Reactivation Manager Platform

Platform URL: crm.marketing4effect.com

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1. INTRODUCTION

1.1 Purpose of This Policy

This Privacy Policy ("Policy") describes how personal data is collected, used, stored, shared, and protected in connection with the Marketing4Effect Customer Reactivation Manager platform (the "Platform"), accessible at crm.marketing4effect.com.

This Policy applies to all personal data processed through the Platform, including customer contact information, purchase history, engagement data, and communications data processed on behalf of businesses ("Clients") that use the Platform for customer database reactivation and win-back services.

1.2 Scope

This Policy applies to:

- **End Customers** — Individuals whose personal data is uploaded to and processed through the Platform by Clients for the purposes of customer reactivation and engagement.
- **Client Users** — Individuals who access and operate the Platform on behalf of a Client organisation.
- **Website Visitors** — Individuals who visit crm.marketing4effect.com or marketing4effect.com.

1.3 Commitment to Data Protection

Marketing4Effect ("M4E") is committed to protecting the privacy and security of all personal data processed through the Platform. M4E processes personal data in compliance with the Nigeria Data Protection Regulation (NDPR) 2019, the Nigeria Data Protection Act (NDPA) 2023, and, where applicable, the General Data Protection Regulation (GDPR) of the European Union.

2. DEFINITIONS

For the purposes of this Policy, the following terms shall have the meanings set forth below:

2.1 "Client" — A business entity that has entered into a Database Reactivation Service Agreement with M4E and uses the Platform to manage customer reactivation campaigns.

2.2 "Data Controller" — The Client, being the entity that determines the purposes and means of processing End Customer personal data. Each Client is the Data Controller with respect to the personal data of its own customers.

2.3 "Data Processor" — Marketing4Effect (M4E), being the entity that processes End Customer personal data on behalf of and under the instructions of the Client (Data Controller).

2.4 "Data Subject" — Any identified or identifiable natural person whose personal data is processed through the Platform, including End Customers, Client Users, and Website Visitors.

2.5 "End Customer" — An individual whose personal data has been provided to the Platform by a Client for the purposes of customer reactivation, segmentation, and campaign delivery.

2.6 "NDPA" — The Nigeria Data Protection Act 2023.

2.7 "NDPC" — The Nigeria Data Protection Commission, established under the NDPA as the supervisory authority for data protection in Nigeria.

2.8 "NDPR" — The Nigeria Data Protection Regulation 2019, issued by the National Information Technology Development Agency (NITDA).

2.9 "Personal Data" — Any information relating to an identified or identifiable natural person, including but not limited to: name, email address, phone number, purchase history, location data, and online identifiers.

2.10 "Platform" — The M4E Customer Reactivation Manager, including all associated web applications, databases, APIs, automation engines, and reporting tools hosted at crm.marketing4effect.com.

2.11 "Processing" — Any operation or set of operations performed on personal data, including collection, recording, organisation, structuring, storage, adaptation, alteration, retrieval, consultation, use, disclosure by transmission, dissemination, alignment, combination, restriction, erasure, or destruction.

2.12 "Sub-Processor" — A third-party service provider engaged by M4E to process personal data on behalf of the Client, as further described in Section 9.

3. DATA CONTROLLER AND DATA PROCESSOR

3.1 Roles and Responsibilities

Role	Entity	Responsibility
Data Controller	The Client (business using the Platform)	Determines the purposes and means of processing End Customer personal data; ensures lawful basis for data collection and sharing; responds to Data Subject requests; maintains records of processing activities
Data Processor	Marketing4Effect (M4E)	Processes End Customer personal data solely on behalf of and under the documented instructions of the Client; implements appropriate technical and organisational security measures; assists the Client in fulfilling Data Subject rights obligations; notifies the Client of data breaches

3.2 Data Processing Agreement

The relationship between the Data Controller (Client) and Data Processor (M4E) is governed by the Data Processing Agreement set forth in Section 8 of the Database Reactivation Service Agreement between the Parties. The Data Processing Agreement specifies the subject matter, duration, nature, and purpose of processing, the types of personal data processed, and the categories of Data Subjects.

3.3 Client Obligations as Data Controller

The Client, as Data Controller, is responsible for:

- (a)** Ensuring that all personal data shared with M4E has been collected lawfully and that the Client has a valid lawful basis for processing under NDPR/NDPA;
- (b)** Obtaining all necessary consents from End Customers for the processing of their personal data through the Platform, including consent for receiving marketing communications via email, WhatsApp, and SMS, where consent is the applicable lawful basis;
- (c)** Providing End Customers with appropriate privacy notices informing them of the processing of their personal data, including the involvement of M4E as a Data Processor;
- (d)** Responding to Data Subject access requests, rectification requests, erasure requests, and other rights requests in accordance with applicable data protection law;
- (e)** Ensuring that personal data shared with M4E is accurate, complete, and up to date;
- (f)** Notifying M4E promptly of any Data Subject requests, complaints, or regulatory enquiries that relate to data processed through the Platform.

3.4 M4E Obligations as Data Processor

M4E, as Data Processor, shall:

- (a)** Process End Customer personal data only on documented instructions from the Client, unless required to do so by Nigerian law, in which case M4E shall inform the Client of that legal requirement before processing (unless prohibited by law);
 - (b)** Ensure that persons authorised to process personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;
 - (c)** Implement appropriate technical and organisational measures to ensure a level of security appropriate to the risk, as described in Section 10;
 - (d)** Not engage another processor (Sub-Processor) without prior specific or general written authorisation of the Client, as described in Section 9;
 - (e)** Assist the Client in fulfilling its obligation to respond to Data Subject requests, as described in Section 7;
 - (f)** Assist the Client in ensuring compliance with data security, breach notification, data protection impact assessment, and prior consultation obligations under NDPR/NDPA;
 - (g)** At the choice of the Client, delete or return all personal data to the Client after the end of the provision of services, and delete existing copies unless Nigerian law requires storage of the personal data;
 - (h)** Make available to the Client all information necessary to demonstrate compliance with data processing obligations and allow for and contribute to audits, including inspections, conducted by the Client or another auditor mandated by the Client.
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4. CATEGORIES OF PERSONAL DATA COLLECTED

4.1 End Customer Data

The following categories of End Customer personal data may be processed through the Platform:

Category	Data Elements	Source
Identity Data	Full name, title, gender	Client's database customer
Contact Data	Email address, phone number (mobile), WhatsApp number, physical address	Client's database customer
Transaction Data	Purchase history, transaction dates, transaction amounts, products/services purchased, payment methods	Client's sales/POS systems
Segmentation Data	Customer segment (Active, Dormant — Hot/Warm/Cold), customer value tier (VIP/Mid/Low), engagement classification	Generated by the Platform from Transaction Data
Engagement Data	Email open/click events, WhatsApp message delivery/read/reply events, SMS delivery events, landing page visits, campaign interaction timestamps	Generated by the Platform during campaign execution
Communication Data	Content of WhatsApp messages sent and received, email content, SMS content	Generated during campaign execution and customer interactions
Deal/Pipeline Data	Deal stage, deal value, expected close date, deal outcome, notes	Created within the Platform by Client Users
Technical Data	IP address, browser type, device information, access timestamps (for Client Users accessing the Platform)	Collected automatically by the Platform

4.2 Client User Data

The following personal data is collected from Client Users who access the Platform:

Category	Data Elements	Purpose
Account Data	Name, email address, role, organisation	Account creation and access management
Authentication Data	Hashed password, session tokens	Secure access to the Platform
Activity Data	Login timestamps, actions performed, IP addresses	Audit trail and security monitoring

4.3 Website Visitor Data

For visitors to crm.marketing4effect.com and marketing4effect.com:

Category	Data Elements	Purpose
Technical Data	IP address, browser type, operating system, referring URL	Website functionality and security
Usage Data	Pages visited, time on site, click patterns	Website improvement and analytics
Cookie Data	Session identifiers, preference settings	Website functionality (see Section 12)

5. PURPOSES OF DATA PROCESSING

5.1 Primary Purposes

Personal data is processed through the Platform for the following primary purposes:

(a) Customer Database Reactivation — Identifying Dormant Customers within the Client's database and executing targeted reactivation campaigns to re-engage them and drive repeat purchases.

(b) Customer Segmentation — Classifying End Customers into actionable segments based on purchase recency, customer value, and engagement history to enable personalised communication strategies.

(c) Multi-Channel Campaign Delivery — Sending personalised reactivation messages to End Customers via email (Brevo), WhatsApp (Meta Business API), and SMS (Brevo) on behalf of the Client.

(d) Performance Tracking and Attribution — Measuring campaign effectiveness by tracking engagement events and attributing reactivated purchases to specific campaigns within the agreed Attribution Window.

(e) Reporting and Analytics — Generating performance reports, calculating key metrics (Reactivation Rate, Average Order Value, Customer Lifetime Value, Reactivation Revenue), and providing actionable insights to the Client.

(f) Deal and Pipeline Management — Tracking sales opportunities and customer interactions within the CRM pipeline on behalf of the Client.

5.2 Secondary Purposes

(a) Service Improvement — Using anonymised, aggregated data to improve the Platform's algorithms, segmentation models, and campaign optimisation capabilities.

(b) Compliance and Legal Obligations — Processing personal data as necessary to comply with legal obligations, respond to lawful requests from authorities, and establish, exercise, or defend legal claims.

(c) Security and Fraud Prevention — Monitoring Platform access and usage to detect and prevent unauthorised access, data breaches, and fraudulent activity.

5.3 Prohibited Purposes

M4E shall NOT process End Customer personal data for:

- Selling or renting personal data to third parties
 - Advertising or marketing M4E's own services to End Customers
 - Profiling End Customers for purposes unrelated to the Client's reactivation campaigns
 - Any purpose not authorised by the Client in the Database Reactivation Service Agreement
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6. LAWFUL BASIS FOR PROCESSING

6.1 Lawful Basis Framework

Under the NDPR and NDPA, personal data must be processed on a lawful basis. The applicable lawful basis depends on the category of Data Subject and the nature of the processing:

Processing Activity	Data Subject Category	Lawful Basis	Justification
Reactivation campaigns to existing customers	End Customers (with prior purchase history)	Legitimate Interest (NDPR Art. 2.2; NDPA s.25(1)(f))	The Client has a legitimate interest in re-engaging existing customers who have a prior commercial relationship. The processing is necessary for this purpose and does not override the End Customer's rights, given the pre-existing relationship and the ability to opt out.
Marketing communications to new prospects	End Customers (no prior purchase)	Consent (NDPR Art. 2.3; NDPA s.25(1)(a))	Where the End Customer has no prior purchase history, explicit consent is required before sending marketing communications. Consent must be freely given, specific, informed, and unambiguous.
Customer segmentation and analytics	End Customers	Legitimate Interest (NDPR Art. 2.2; NDPA s.25(1)(f))	Segmentation of existing customers based on purchase behaviour is a reasonable expectation within the commercial relationship and is necessary for effective service delivery.
Transaction data processing for attribution	End Customers	Performance of Contract (NDPA s.25(1)(b))	Processing transaction data is necessary for the performance of the service agreement between M4E and the Client, which includes attribution-based performance fee calculation.
Platform access and security monitoring	Client Users	Legitimate Interest (NDPA s.25(1)(f))	Security monitoring is necessary to protect the Platform, personal data, and the interests of all parties.
Cookie-based analytics	Website Visitors	Consent (where required)	Non-essential cookies require consent. Essential cookies are processed under Legitimate Interest.

6.2 Legitimate Interest Assessment

Where Legitimate Interest is relied upon as the lawful basis, M4E and the Client have conducted a Legitimate Interest Assessment (LIA) considering:

(a) Purpose Test — Is there a legitimate interest? Yes — re-engaging existing customers to drive repeat business is a recognised commercial interest.

(b) Necessity Test — Is the processing necessary for that purpose? Yes — personalised, data-driven reactivation campaigns require processing of customer contact and transaction data.

(c) Balancing Test — Does the legitimate interest override the Data Subject's rights and freedoms? No — the processing involves existing customers with a prior commercial relationship, the data processed is limited to what is necessary, robust security measures are in place, and End Customers can opt out at any time.

6.3 Consent Management

Where consent is the applicable lawful basis:

(a) The Client is responsible for obtaining valid consent from End Customers before sharing their personal data with M4E for marketing purposes.

(b) Consent must meet the requirements of NDPR/NDPA: freely given, specific, informed, and unambiguous, demonstrated by a clear affirmative action.

(c) End Customers must be able to withdraw consent at any time, with the same ease as it was given. Withdrawal of consent does not affect the lawfulness of processing based on consent before its withdrawal.

(d) The Platform provides opt-out mechanisms in all marketing communications, including:

- Unsubscribe links in emails
- "STOP" keyword processing in WhatsApp and SMS messages
- Opt-out request handling through the Client's customer service channels

7. DATA SUBJECT RIGHTS

7.1 Rights Under NDPR/NDPA

Data Subjects (End Customers, Client Users, and Website Visitors) have the following rights under the NDPR and NDPA:

(a) Right of Access — The right to obtain confirmation as to whether personal data concerning them is being processed, and if so, to access that personal data and receive information about the processing (NDPA s.34).

(b) Right to Rectification — The right to have inaccurate personal data corrected and incomplete personal data completed (NDPA s.35).

(c) Right to Erasure (Right to Be Forgotten) — The right to have personal data erased where: the data is no longer necessary for the purpose for which it was collected; consent is withdrawn; the Data Subject objects to processing; or the data has been unlawfully processed (NDPA s.36).

(d) Right to Restriction of Processing — The right to restrict processing where: the accuracy of the data is contested; the processing is unlawful; M4E no longer needs the data but the Data Subject requires it for legal claims; or the Data Subject has objected to processing pending verification (NDPA s.37).

(e) Right to Data Portability — The right to receive personal data in a structured, commonly used, and machine-readable format, and to transmit that data to another controller (NDPA s.38).

(f) Right to Object — The right to object to processing based on legitimate interest or for direct marketing purposes. Where the Data Subject objects to direct marketing, the personal data shall no longer be processed for that purpose (NDPA s.39).

(g) Right Not to Be Subject to Automated Decision-Making — The right not to be subject to a decision based solely on automated processing, including profiling, which produces legal effects or similarly significantly affects the Data Subject (NDPA s.40).

7.2 Exercising Data Subject Rights

(a) End Customers — Because the Client is the Data Controller, End Customer rights requests should be directed to the Client in the first instance. The Client may then instruct M4E to take the necessary technical actions within the Platform (e.g., data export, deletion, or restriction).

(b) Direct Requests to M4E — If an End Customer contacts M4E directly with a rights request, M4E shall:

1. Acknowledge receipt within five (5) business days;
2. Notify the relevant Client within two (2) business days;
3. Assist the Client in responding to the request within the statutory timeframe;
4. Not act on the request without the Client's instruction, unless required by law.

(c) Client Users — Client Users may exercise their rights by contacting M4E directly at the contact details provided in Section 15.

7.3 Response Timeframes

Right	Response Timeframe	Extension
Access	30 days from receipt of valid request	Up to 60 days for complex requests (with notification)
Rectification	30 days from receipt of valid request	Up to 60 days for complex requests
Erasure	30 days from receipt of valid request	Up to 60 days for complex requests
Restriction	Without undue delay	—
Portability	30 days from receipt of valid request	Up to 60 days for complex requests
Objection	Without undue delay	—

7.4 Verification of Identity

Before processing any Data Subject rights request, M4E or the Client (as applicable) may require verification of the Data Subject's identity to prevent unauthorised access to personal data. Verification may include:

- Confirmation of identity via email address on file
- Provision of government-issued identification (for sensitive requests)
- Confirmation of account details known only to the Data Subject

8. DATA RETENTION

8.1 Retention Periods

Personal data processed through the Platform is retained in accordance with the following schedule, which is aligned with Section 8.6 of the Database Reactivation Service Agreement:

Data Type	Retention Period	Action After Retention
Customer contact records	Duration of Service Agreement + 90 days	Deleted or exported to Client
Transaction data	Duration of Service Agreement + 90 days	Deleted or exported to Client
Campaign engagement logs	Duration of Service Agreement + 180 days	Anonymised or deleted
WhatsApp conversation content	Duration of Service Agreement + 90 days	Deleted
Email content and templates	Duration of Service Agreement + 90 days	Deleted or exported to Client
Automation and workflow logs	Duration of Service Agreement + 90 days	Deleted
Client User account data	Duration of Service Agreement + 30 days	Deleted
Aggregated analytics (anonymised)	Indefinite	Retained for benchmarking (no personal data)
Audit trail logs	Duration of Service Agreement + 365 days	Deleted
Backup copies	30 days after primary data deletion	Purged from backup systems

8.2 Retention Principles

(a) Personal data is retained only for as long as necessary to fulfil the purposes for which it was collected, or as required by law.

(b) Upon termination of the Service Agreement, M4E shall delete all End Customer personal data within thirty (30) days of successful data export to the Client, or within thirty (30) days of the Client's written confirmation that export is not required.

(c) The Client may request early deletion of specific End Customer records at any time during the Service Agreement term.

(d) Anonymised, aggregated data that cannot be used to identify any individual may be retained indefinitely for internal benchmarking and service improvement purposes.

8.3 Data Export

Upon termination or upon written request, the Client may receive a complete export of all personal data in the following formats:

- CSV (Comma-Separated Values)
 - JSON (JavaScript Object Notation)
 - SQL dump (PostgreSQL-compatible)
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9. SUB-PROCESSORS AND THIRD-PARTY SERVICE PROVIDERS

9.1 Authorised Sub-Processors

M4E engages the following Sub-Processors to deliver the Platform services. Each Sub-Processor processes personal data only to the extent necessary for its designated function and is bound by data processing obligations no less protective than those in this Policy and the Service Agreement:

Sub-Processor	Function	Data Processed	Data Location	Privacy Policy
Supabase, Inc.	Database hosting (PostgreSQL), authentication, real-time subscriptions	All End Customer data, Client User accounts, transaction data, engagement logs	Cloud infrastructure (US/EU regions)	https://supabase.com/privacy
Meta Platforms, Inc. (WhatsApp Business API)	WhatsApp message delivery and receipt tracking	End Customer phone numbers, WhatsApp message content, delivery/read receipts	Global (Meta infrastructure)	https://www.whatsapp.com/legal/privacy-policy
Brevo (Sendinblue)	Email delivery, SMS delivery, transactional messaging	End Customer email addresses, phone numbers, email/SMS content, engagement events	European Union	https://www.brevo.com/legal/privacypolicy/
Vercel, Inc.	Application hosting, serverless functions, edge network	Client User session data, API request metadata (no End Customer PII stored at rest)	Global (Edge network)	https://vercel.com/legal/privacy-policy

9.2 Sub-Processor Management

(a) M4E maintains a current list of all Sub-Processors and shall notify the Client before engaging any new Sub-Processor or replacing an existing one.

(b) The Client has the right to object to the appointment of a new Sub-Processor on reasonable grounds related to data protection. If the Client objects and M4E cannot reasonably accommodate the objection, either Party may terminate the affected services.

(c) M4E conducts due diligence on all Sub-Processors to ensure they provide sufficient guarantees regarding data protection and security.

(d) M4E remains fully liable to the Client for the performance of each Sub-Processor's data protection obligations.

9.3 No Other Sharing

M4E does not sell, rent, trade, or otherwise share End Customer personal data with any third party for their own purposes. Personal data is shared with Sub-Processors solely for the purpose of delivering the Platform services as described in this Policy.

10. DATA SECURITY MEASURES

10.1 Technical Measures

M4E implements the following technical security measures to protect personal data processed through the Platform:

Measure		Implementation
Encryption at Rest	at	AES-256 encryption for all stored personal data (Supabase PostgreSQL)
Encryption in Transit	in	TLS 1.2+ (minimum) for all data transmissions between the Platform, Sub-Processors, and end users
API Security		API keys and sensitive credentials encrypted using application-level encryption before storage; API rate limiting and request validation
Authentication		Secure password hashing (bcrypt); session token management; optional multi-factor authentication (MFA) for Client Users
Access Control		Role-Based Access Control (RBAC) enforced within the Platform; principle of least privilege applied to all user roles
Audit Logging		Comprehensive logging of all data access, modifications, and administrative actions with user identity, timestamp, and IP address
Anomaly Detection		Automated detection of unusual transaction patterns, access anomalies, and potential security incidents
Backup and Recovery	and	Regular automated backups with encryption; tested recovery procedures; backup retention per Section 8.1
Network Security		Firewall protection; DDoS mitigation (via Vercel/Cloudflare); intrusion detection monitoring
Code Security		Secure development practices; dependency vulnerability scanning; regular security updates

10.2 Organisational Measures

Measure	Implementation
Personnel Security	All M4E personnel with access to personal data are bound by confidentiality obligations
Access Reviews	Regular review of access permissions; prompt revocation upon role change or departure
Security Training	Data protection and security awareness training for all personnel
Incident Response	Documented incident response procedures with defined roles and escalation paths
Vendor Management	Due diligence and ongoing monitoring of Sub-Processor security practices
Data Minimisation	Processing limited to the minimum personal data necessary for service delivery

10.3 Client Security Responsibilities

The Client is responsible for:

- (a)** Maintaining the security of Client User account credentials;
- (b)** Configuring appropriate access permissions for Client Users within the Platform;
- (c)** Promptly notifying M4E of any suspected unauthorised access to Client User accounts;
- (d)** Ensuring that personal data uploaded to the Platform is transmitted securely.

11. CROSS-BORDER DATA TRANSFERS

11.1 Nature of Transfers

Due to the use of cloud-based Sub-Processors, End Customer personal data may be transferred to and processed in jurisdictions outside Nigeria, including the United States and the European Union.

11.2 Transfer Safeguards

All cross-border transfers of personal data are conducted in compliance with NDPR/NDPA requirements and are subject to the following safeguards:

(a) Adequacy Determination — Where personal data is transferred to a jurisdiction that the NDPC or NITDA has determined provides an adequate level of data protection, no additional safeguards are required.

(b) Contractual Safeguards — Where an adequacy determination does not exist, M4E ensures that appropriate contractual safeguards are in place, including:

- Data Processing Agreements with all Sub-Processors incorporating data protection obligations equivalent to those in this Policy;
- Standard Contractual Clauses (SCCs) or equivalent transfer mechanisms where applicable;
- Binding commitments from Sub-Processors regarding data security and confidentiality.

(c) Technical Safeguards — All cross-border data transfers are encrypted in transit using TLS 1.2+ and encrypted at rest using AES-256 at the destination.

11.3 Sub-Processor Transfer Details

Sub-Processor	Transfer Destination	Safeguard Mechanism
Supabase	US/EU	Data Processing Agreement; SOC 2 Type II compliance; encryption at rest and in transit
Meta (WhatsApp)	Global	Meta Data Processing Terms; EU-US Data Privacy Framework (where applicable)
Brevo	EU	Data Processing Agreement; GDPR compliance; EU-based data centres
Vercel	Global (Edge)	Data Processing Agreement; SOC 2 Type II compliance; edge processing with minimal data persistence

12. COOKIES AND TRACKING TECHNOLOGIES

12.1 Cookies Used by the Platform

The Platform (crm.marketing4effect.com) uses the following categories of cookies:

Category	Purpose	Duration	Consent Required
Strictly Necessary	Authentication, session management, security, CSRF protection	Session / up to 24 hours	No (essential for Platform operation)
Functional	User preferences, language settings, dashboard configurations	Up to 12 months	No (necessary for requested functionality)
Analytics	Platform usage patterns, feature adoption, error tracking	Up to 12 months	Yes

12.2 Campaign Tracking Technologies

Reactivation campaigns delivered via email, WhatsApp, and SMS may use the following tracking technologies:

Technology	Purpose	Data Collected
Email Open Tracking	Measuring email engagement	Timestamp, IP address, email client
Link Click Tracking	Measuring content engagement	Timestamp, link URL, referrer
UTM Parameters	Campaign attribution	Campaign source, medium, content identifiers
WhatsApp Receipts	Measuring message delivery and engagement	Delivery and read timestamps

12.3 Managing Cookie Preferences

Client Users may manage cookie preferences through:

- Browser settings to block or delete cookies
- Platform cookie consent banner (for analytics cookies)

End Customers do not directly interact with the Platform and therefore are not subject to Platform cookies. Campaign tracking technologies are managed through opt-out mechanisms described in Section 6.3(d).

13. DATA BREACH NOTIFICATION

13.1 Definition of Data Breach

A "personal data breach" means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to, personal data transmitted, stored, or otherwise processed through the Platform.

13.2 Notification to the Client (Data Controller)

In the event of a personal data breach affecting End Customer data:

(a) M4E shall notify the Client without undue delay and in any event within **seventy-two (72) hours** of becoming aware of the breach, in accordance with NDPR requirements.

(b) The notification shall include:

- A description of the nature of the breach, including the categories and approximate number of Data Subjects and personal data records affected;
- The name and contact details of M4E's data protection contact;
- A description of the likely consequences of the breach;
- A description of the measures taken or proposed to address the breach, including measures to mitigate its possible adverse effects.

(c) Where it is not possible to provide all information simultaneously, information may be provided in phases without undue further delay.

13.3 Notification to the NDPC

The Client, as Data Controller, is responsible for notifying the Nigeria Data Protection Commission (NDPC) of a personal data breach within seventy-two (72) hours where the breach is likely to result in a risk to the rights and freedoms of Data Subjects. M4E shall cooperate with and assist the Client in making such notification.

13.4 Notification to Data Subjects

Where a personal data breach is likely to result in a high risk to the rights and freedoms of Data Subjects, the Client shall communicate the breach to the affected Data Subjects without undue delay. M4E shall assist the Client in identifying affected Data Subjects and preparing appropriate communications.

13.5 Breach Response Procedures

M4E maintains documented data breach response procedures, including:

1. **Detection and Containment** — Immediate steps to identify the scope of the breach and contain further data exposure.

2. **Assessment** — Evaluation of the nature, scope, and severity of the breach, including the categories of data and Data Subjects affected.
 3. **Notification** — Timely notification to the Client, NDPC, and Data Subjects as required.
 4. **Remediation** — Implementation of measures to address the breach and prevent recurrence.
 5. **Documentation** — Recording of all breaches, including facts, effects, and remedial actions taken, regardless of whether notification was required.
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14. CHILDREN'S DATA

14.1 Age Restriction

The Platform is designed for business-to-customer reactivation services and is not intended for use with personal data of children under the age of eighteen (18) years.

14.2 Client Responsibility

The Client warrants that it shall not upload personal data of children under eighteen (18) years of age to the Platform without appropriate parental or guardian consent and without notifying M4E in advance.

14.3 Inadvertent Collection

If M4E becomes aware that personal data of a child under eighteen (18) has been processed through the Platform without appropriate consent, M4E shall promptly notify the Client and take reasonable steps to delete such data.

15. CONTACT INFORMATION FOR DATA REQUESTS

15.1 M4E Data Protection Contact

For questions about this Privacy Policy, data protection practices, or to exercise Data Subject rights:

Organisation	Marketing4Effect (M4E)
Email	privacy@marketing4effect.com
General Email	hello@marketing4effect.com
Address	Lagos, Nigeria
Response Time	Within five (5) business days of receipt

15.2 Client Data Protection Contact

End Customers should direct data protection enquiries to the Client (Data Controller) in the first instance, using the contact details provided by the Client in its own privacy notice or terms of service.

16. UPDATES TO THIS POLICY

16.1 Policy Changes

M4E reserves the right to update this Privacy Policy from time to time to reflect changes in:

- Data processing practices
- Sub-Processors engaged
- Applicable data protection laws and regulations
- Platform features and functionality
- Regulatory guidance from the NDPC or other authorities

16.2 Notification of Changes

(a) Material changes to this Policy shall be communicated to Clients via email at least thirty (30) days before the changes take effect.

(b) The updated Policy shall be published at crm.marketing4effect.com/privacy with the revised "Last Updated" date.

(c) Continued use of the Platform after the effective date of changes constitutes acceptance of the updated Policy.

16.3 Version History

Version	Date	Description
1.0	June 2025	Initial publication

17. GOVERNING LAW AND JURISDICTION

17.1 Governing Law

This Privacy Policy shall be governed by and construed in accordance with the laws of the **Federal Republic of Nigeria**, including the Nigeria Data Protection Regulation (NDPR) 2019 and the Nigeria Data Protection Act (NDPA) 2023.

17.2 Jurisdiction

Any disputes arising from or in connection with this Privacy Policy shall be subject to the exclusive jurisdiction of the courts of Lagos State, Nigeria, without prejudice to the right of Data Subjects to lodge complaints with the Nigeria Data Protection Commission (NDPC).

18. COMPLAINTS

18.1 Internal Complaints

Data Subjects who are dissatisfied with how their personal data has been handled may lodge a complaint with M4E using the contact details in Section 15. M4E shall acknowledge the complaint within five (5) business days and provide a substantive response within thirty (30) days.

18.2 Regulatory Complaints

Data Subjects have the right to lodge a complaint with the Nigeria Data Protection Commission (NDPC):

Authority	Nigeria Data Protection Commission (NDPC)
Website	https://ndpc.gov.ng
Mandate	Supervisory authority for data protection in Nigeria under the NDPA 2023

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